BEFORE THE HON'BLE SOLE ARBITRATOR JUSTICE K.KANNAN (RETD.) AT CHENNAI

M.P.No. OF 2024

IN

A.P.No. 4 OF 2023

IN THE MATTER OF ARBITRATION BETWEEN

1.Mr.A.Krishnaswamy
S/o N.Aruchamy Gounder & Others
All residing atNo.3, Saamiyn Thottam,
Udayampalyam,
Coimbatore – 641 006 ..Petitioners/Claimants

-Vs-

M/s.Whitehouse Residencies India Pvt., Ltd.,
Rep. by its Managing Director,
Mr.D.Ramachandra Prabhu, ..Respondent/Respondent

AFFIDAVIT

I, A.Krishnaswamy, S/o N.Aruchamy Gounder, residing at No. 3, Saamiyn Thottam, Udayampalayam, Coimbatore 641006, do hereby solemnly affirm and sincerely state as follows;

1. I am the 1st Claimant in the Arbitration proceedings. The other petitioners are my brothers and I am swearing this affidavit on behalf of all the Petitioners.

2. I submit that we have filed the main claim petition *inter alia* seeking for damages at Rs.34,32,41,919/- together with interest at 24% per annum, permanent injunction restraining the respondents from interfering with our peaceful possession and enjoyment of claim petition mentioned B, C and D Schedule properties and for other reliefs. I humbly crave leave to consider the claim petition submitted by us as part and parcel of this affidavit.
3. I humbly submit that during the cross-examination of CW-2, namely the 1st petitioner herein, the witness let in oral evidence by stating that two purchasers of

sites in Phase 2 had informed him that they had entered into agreements with the respondent for the construction of villas. Furthermore, the CW-2 has also stated that he had seen some agreements and could present them before this Hon'ble Tribunal on a later date. At this juncture, I had a vague remembrance of collecting some documents rated to Phase 2 and by that belief, we searched for those documents which we were unable to trace out earlier as they had been misplaced among several other papers relating to the dispute and could not be located promptly despite diligent and thorough search. Further, our office premises was recently shifted and hence, added further difficulty in us locating these documents. Whereas, after an extensive search of several months, we have now found the agreement entered into between the aforementioned Jayakala and the respondent's Alter Ego company, namely AP Constructions, a partnership firm in which Mr.Chandrasekar, the CEO of the respondent company, is a partner. The said document entered into between Mrs.Jayakala and A.P.Constructions elicits the fact that A.P.Constructions has involved themselves into the affairs of the project. The said document records payment of an amount of Rs.10,00,000/- to A. P. Constructions towards development charges incurred by A. P. Constructions.

4. I submit that the RW1 in Line 42, cross examination dated 24.02.2024, admits that the Mr. Chandrasekhar is the owner or partner of A.P. Constructions, which establishes a nexus between the Respondent Company and A. P. Constructions. The said A.P. Constructions is a related entity to the Respondent company and the said document stands testament to the fact that it was indeed the Respondent who has, through A. P. Constructions engaged in transactions with the buyers of the lands in Phase 2. It is settled law that non-signatories to an arbitration agreement can be made parties to an Arbitration Proceedings in an event when it will not be possible to adjudicate the dispute without impleading such parties and wherein the subject matter of the dispute is intricately linked to the non-signatory, and without the involvement of the non-signatory the transaction in consideration could not have been completed. Further, with the nexus and involvement of A.P. Constructions already established vide Document dated 15.11.2021, entered into between Jayakala, one of the purchasers of the lands in Phase II and A.P.Constructions, an alter ego of the Respondent Company, it would be impossible to adjudicate and arrive at what had actually occurred with respect to

Phase 2 and to adjudicate if the Respondent has benefitted in any way from Phase 2. The said document also claims that A. P. Constructions is the owner of the lands, hinting a possible fraud played by the Respondent by colluding with the alter ego company A. P. Constructions.

5. In fact, it is most humbly submitted that the very formation of A. P. Constructions is only to facilitate tansactions with the Respondent and other entities related to the Respondent in the guise of being separate entities in the eyes of law.

6. In such circumstances, it would be absolutely necessary to implead M/s. A. P. Constructions as a party to the Proceedings. The books of accounts and other such official documents of the said A. P. Constructions would reveal more, and corroborate the Claimant's claim that the Respondents were in fact involved in the construction of Phase 2 villas.

Therefore, it is most respectfully prayed that this Hon'ble Tribunal may be pleased to pass an order impleading M/s. A.P.Constructions as a party to the current Arbitration Proceedings or grant such other further reliefs as this Hon'ble Tribunal deems fit in the facts and circumstances of this case.

1st PETITIONER

BEFORE THE HON'BLE SOLE ARBITRATOR JUSTICE K.KANNAN (RETD.) AT CHENNAI

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1.Mr.A.Krishnaswamy
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All residing atNo.3, Saamiyn Thottam,
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Coimbatore – 641 006 ..Petitioners/Claimants

-Vs-

M/s.Whitehouse Residencies India Pvt., Ltd.,
Rep. by its Managing Director,
Mr.D.Ramachandra Prabhu, ..Respondent/Respondent

PETITION FILED UNDER SECTION 17 OF ARBITRATION AND CONCILATION ACT, 1996

I.PETITIONERS/CLAIMANTS:

1. Mr.A.Krishnaswamy, S/o N.Aruchamy Gounder, aged about 66 years, residing at No.3, Saamiyan Thottam, Udayampalayam, Coimbatore – 641 006.

2. Mr.A.Somasundaram, S/o N.Aruchamy Gounder, aged about 63 years, residing at No.3, Saamiyan Thottam, Udayampalayam, Coimbatore – 641 006.

3. Shanmuga Sundaram, S/o N.Aruchamy Gounder, aged about 59 years, residing at No.3, Saamiyan Thottam, Udayampalayam, Coimbatore – 641 006.

4. A.Sivamani, S/o N.Aruchamy Gounder, aged about 57 years, residing at No.3, Saamiyan Thottam, Udayampalayam, Coimbatore – 641 006.

The address for service of the Petitioners/Claimants is same as above and care of their Counsel Mr. S.Chandrasekaran M.A., B.L., DLL., Advocate, Coimbatore.

II. RESPONDENT/RESPONDENT:

M/s.Whitehouse Residencies India Pvt., Ltd., Rep. by its Managing Director, Mr.D.Ramachandra Prabhu, having its registered office at No.3C, Nisha Complex, Sathy Main Road, Saravanampatti, Coimbatore – 641 035.

The address for service of the above Respondent/Respondent is the same as above.

For the reasons stated in the accompanying affidavit, it is therefore prayed that this Hon'ble Tribunal may be pleased to pass an order impleading M/s.A.P.Constructions as a party to the current Arbitration Proceedings or grant such other further reliefs as this Hon'ble Tribunal deems fit in the facts and circumstances of this case.

ADVOCATE FOR PETITIONERS